

HOUSE No.

The Commonwealth of Massachusetts

PRESENTED BY:

Paul K. Frost, (BY REQUEST)

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to strengthening penalties for non-consensual image sharing and providing supportive victim services.

PETITION OF:

NAME:

Aspen Boss

DISTRICT/ADDRESS:

DATE ADDED:

2/17/2026

HOUSE No.

By Representative Frost of Auburn (by request), a petition (subject to Joint Rule 12) of Aspen Boss relative to penalties for non-consensual image sharing and providing supportive victim services. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to strengthening penalties for non-consensual image sharing and providing supportive victim services.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Notwithstanding any general or special law to the contrary, any individual
2 who is suspected of, or convicted for, criminal harassment arising from the non-consensual
3 distribution of explicit images of another individual shall have their phone, computer, and any
4 other electronic storage or communications device used in connection with the offense
5 confiscated by law enforcement; provided further, that such device shall be preserved as
6 evidence for the purpose of prosecuting cases of non-consensual sexual image abuse.

7 SECTION 2. Subsection (2) (b) of Section 43A of Chapter 265, as appearing in the 2022
8 Official Edition, is hereby amended by striking the following words, “and (C) the depicted
9 person's reasonable expectation that the visual material would remain private, shall be guilty of
10 the crime of criminal harassment and shall be punished by imprisonment in a house of correction
11 for not more than 2 1/2 years, by a fine of not more than \$10,000 or by both such fine and

imprisonment. Nothing in this section shall preclude a prosecution under section 29C of chapter 272.”, and replacing them with the following:

(C) Knowingly possesses visually explicit material or partially nude images that they are aware have been distributed illegally and (D) the depicted person's reasonable expectation that the visual material would remain private, shall be guilty of the crime of criminal harassment and shall be punished by imprisonment in a house of correction for not more than 2 1/2 years, by a fine of not more than \$10,000 or by both such fine and imprisonment. Nothing in this section shall preclude a prosecution under section 29C of chapter 272.

SECTION 3. Notwithstanding any general or special law to the contrary, the Attorney General, in partnership with the Massachusetts Office for Victim Assistance, shall establish a program to provide resources to victims of criminal harassment in cases involving the non-consensual distribution of sexually explicit images; provided further that services shall include, but not be limited to, resources for legal services, emotional support, psychological services, and referrals to established nonprofit organizations and advocacy groups.